

**THE PUNJAB RECOVERY OF COST (COPIES OF
ESSENTIAL REVENUE RECORDS) ORDINANCE, 1963
(XVI of 1963)**

CONTENTS

1. Short title, extent and commencement.
2. Definitions.
3. Copies of essential revenue records to be prepared by the revenue Staff.
4. Essential revenue records to be made available to the public.
5. Liability for payment of cost of copies and the rate thereof.
6. Power to make rules.

TEXT

**¹THE ²[PUNJAB] RECOVERY OF COST (COPIES OF ESSENTIAL
REVENUE RECORDS) ORDINANCE, 1963**

(XVI of 1963)

[28 May 1963]

An
Ordinance

*to provide for the recovery of cost incurred by Government in the preparation and
supply of copies of essential revenue records to the Union Councils for public
information in the Province of ³[the Punjab].*

Preamble.— WHEREAS, it is expedient to provide for the recovery of cost incurred by Government in the preparation and supply of copies of essential revenue records to the Union Councils for public information, in the Province of ⁴[the Punjab], in the manner hereinafter appearing;

AND, WHEREAS, the Provincial Assembly of West Pakistan is not in session and the Governor of West Pakistan is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred on him by clause (1) of Article 79 of the Constitution, the Governor of West Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the ⁵[Punjab] Recovery of Cost (Copies of Essential Revenue Records) Ordinance, 1963.

(2) It extends to the whole of the Province of ⁶[the Punjab], except the Tribal Areas.

(3) It shall come into force at once.

2. Definitions.— In this Ordinance, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

(a) “Board of Revenue” means the Board of Revenue constituted under the ¹[Punjab] Board of Revenue Act, 1957 (West Pakistan Act XI of 1957);

¹This Ordinance was promulgated by the Governor of West Pakistan on May 24, 1963, published in the Gazette of West Pakistan (Extraordinary), dated May 28, 1963, pp. 2355-2357; approved by the Provincial Assembly of West Pakistan with amendments, on July 17, 1963, under clause (3) of Article 79 of the Constitution of the Islamic Republic of Pakistan (1962).

²Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule Part III, Serial No. 62.

³*Ibid.*

⁴*Ibid.*

⁵*Ibid.*

⁶*Ibid.*

- (b) “Collector” means the Chief Officer-in-Charge of the revenue administration of a District and includes a Deputy Commissioner² and any other officer specially empowered by the Board of Revenue to perform the functions of a Collector;
- (c) “essential revenue record” means Jamabandi, Khasra Girdawari, Fard Bachh, Village Map, Number Shumari-V.F.VI, Record of Rights-V.F.VII-A, Bill of Assessment and Deh map or such other revenue record as may be declared by the Board of Revenue to be essential revenue record for the purposes of this Ordinance;
- (d) “estate” means any area—
 - (i) for which a separate record of rights has been made; or
 - (ii) which has been separately assessed to land revenue, or would have been so assessed if the land revenue had not been released, compounded for or redeemed; or
 - (iii) which the Board of Revenue may, by general rule or special order, declare to be an estate;
- (e) “Government” means the ³[Provincial Government of the Punjab];
- (f) “land revenue” means the land revenue assessed under the provisions of any law regulating the assessment of land revenue for the time being in force;
- (g) “prescribed” means prescribed by rules made under this Ordinance;
- (h) “Union Council” means a Union Council established under the Basic Democracies Order, 1959 (*P.O. No.18 of 1959*).

3. Copies of essential revenue records to be prepared by the revenue Staff.— As soon as may be, copies of the essential revenue records relating to an estate or part of an estate lying within the jurisdiction of a Union Council, shall in the prescribed manner, be prepared and supplied to the Union Councils.

4. Essential revenue records to be made available to the public.— The copies of essential revenue records received under section 3 shall be kept in the office of the Union Council and shall, at any time during the office hours, be made available to the public for inspection.

5. Liability for payment of cost of copies and the rate thereof.— (1) The cost incurred by Government in the preparation and supply of copies of essential revenue records relating to an estate or part thereof shall be recovered from the person liable to pay land revenue in proportion to the land revenue payable by each such person in respect of the estate or part thereof.

¹Substituted for the words “West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule Part III, Serial No. 62.

²Now “District Officer (Revenue)”.

³Substituted for the words “Government of West Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (1 of 1974) (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2(1) read with Schedule Part III, Serial No. 62.

(2) The certificate of the Collector regarding the total amount of cost so recoverable shall be conclusive proof of such cost being due.

(3) The cost shall be recoverable as arrears of land revenue.

6. Power to make rules.— The Board of Revenue may make rules for carrying into effect the provisions of this Ordinance.